



POLICE DEPARTMENT

June 25, 2024

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2022-26837
Deputy Inspector Omar Birchwood	:	
Tax Registry No. 945512	:	
77 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB: Nicole Jardim, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Louis C. La Pietra, Esq.
La Pietra & Krieger, PC
30 Glenn Street, Suite 105
White Plains, NY 10603

To:
HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

1. Deputy Inspector (then Captain) Omar Birchwood, on or about March 21, 2021, at approximately 0155 hours, while assigned to the 73 Precinct and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that he grabbed § 87(2)(b) arm and pushed her into § 87(2)(b) located at § 87(2)(b) in Brooklyn, without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

2. Deputy Inspector (then Captain) Omar Birchwood, on or about March 21, 2021, at approximately 0155 hours, while assigned to the 73 Precinct and on duty, in the vicinity § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) § 87(2)(b) in Brooklyn, without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5
(now encompassed by
A.G. 304-06, Page 1, Paragraph 1)

PUBLIC CONDUCT—
PROHIBITED CONDUCT

3. Deputy Inspector (then Captain) Omar Birchwood, on or about March 21, 2021, at approximately 0155 hours, while assigned to the 73 Precinct and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that he pulled § 87(2)(b) out § 87(2)(b) located at § 87(2)(b) in Brooklyn, without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on May 14, 2024. Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The Civilian Complaint Review Board did not call any witnesses, but entered evidence including Body-Worn Camera (hereinafter “BWC”) footage from the incident (CCRB’s Exhibits 1 and 2 and § 87(2)(b) CCRB Interview transcript and audio (CCRB’s Exhibit 4 and 4A) for the court’s consideration. Respondent testified on his own behalf and called Sergeant Terrence

Howard. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, the Tribunal finds Respondent Not Guilty of the charged misconduct.

ANALYSIS

The following is a summary of the facts that are not in dispute. On March 21, 2021, at approximately 0155 hours, the ShotSpotter system sent an alert regarding three gunshots in the vicinity of 219 MacDougal Street, followed later by a 911 call reporting fireworks at the same location. Respondent Birchwood, who was then the Executive Officer of the 73 precinct, responded to the location with Sergeant Frantz Chauvet and Sergeant Terrance Howard. As they approached the location, they observed a person, later identified as § 87(2)(b) (hereinafter § 87(2)(b)) and another individual standing outside § 87(2)(b) which is in close proximity to the reported location. As Respondent and the two sergeants exited their vehicle, § 87(2)(b) and others ran into § 87(2)(b) which is a multi-dwelling apartment building. Sergeant Chauvet and Sergeant Howard ran after them and followed them inside the building. (Tr. 33-37, 62-63, 89)

Respondent was behind them, but he dropped his radio and was unable to get into the building before the door locked. He waited outside for a few minutes until two individuals walked out of the building, allowing Respondent to gain entry. Respondent proceeded to look for his officers. After going to the wrong floor, Respondent returned to the § 87(2)(b) floor where he was joined by other officers that arrived on scene. The door to an apartment on the § 87(2)(b) floor was open and § 87(2)(b) (hereinafter § 87(2)(b)) was standing in the doorway speaking to the officers. Respondent approached § 87(2)(b) and asked her if he could enter her apartment. She did not

consent to him entering her apartment. Respondent then used his hand to push § 87(2)(b) out of the doorway and enter the apartment where Sergeants Chauvet and Sergeant Howard were. (Tr. 66, 89-94)

Inside the apartment, there were several individuals yelling. Respondent attempted to engage with § 87(2)(b) and his family members about why he took certain police action, but the commotion continued. Respondent authorized Sergeant Chauvet to issue § 87(2)(b) a summons for the fireworks found inside the apartment. An argument ensued between Sergeant Chauvet and § 87(2)(b). A decision was made to take § 87(2)(b) to the precinct to issue him the summons. Sergeant Chauvet approached § 87(2)(b) who was in the doorway of the apartment, and attempted to handcuff him, but his family members intervened by pulling him away from the officers. Respondent assisted Sergeant Chauvet by grabbing § 87(2)(b) and pulling him out of the doorway of the apartment. Ultimately, § 87(2)(b) was arrested, taken to the precinct, and issued a summons for disorderly conduct. (Tr. 48-50 78, 99-104)

Sergeant Terrence Howard's testimony:

Sergeant Howard testified that on the date and time of this incident, he was responding to a ShotSpotter Activation at 219 MacDougal Street along with his partner, Sergeant Chauvet, and Respondent. He testified that two days prior to this incident, a person had been shot in that area, so when he heard this ShotSpotter activation he "took it very seriously." (Tr. 35) He acknowledged that ShotSpotter technology also picks up the sound of fireworks and other loud noises. However, Sergeant Howard asserted that on the night in question, as far as he was concerned, he was responding to shots fired at that location. (Tr. 40)

Upon arrival at the scene, Sergeant Howard observed two males standing near where the ShotSpotter was activated. Although the two males were not in his "first line of sight," he

recalled that upon exiting their unmarked police vehicle, the two males immediately ran into a building located at § 87(2)(b). Sergeant Howard testified that Sergeant Chauvet “gave chase” and he proceeded to follow his partner into the building. Sergeant Howard acknowledged that he and his partner followed them into an apartment despite not having a warrant or consent to enter. There was no conversation between the partners either before or during the chase, but given the two males’ proximity to the location of the ShotSpotter activation and their flight, Sergeant Howard suspected they might be involved. In fact, according to Sergeant Howard’s testimony, he believed he and his partner were chasing an individual with a gun. Sergeant Howard acknowledged that he became aware that there was a 911 call regarding fireworks at that same location, but stated that he did not know that until after the fact. (Tr. 40-45, 55)

Sergeant Howard testified that once they were inside the apartment, it was a “hostile scene.” He added, “There was multiple individuals in there. There was a lot of yelling and screaming. My partner [is] asking the individual that he was trying to stop for his ID. He was being combative and erratic with him.” (Tr. 37) While inside of the apartment, Sergeant Howard observed fireworks (specifically a Roman candle) in the living room near one of the males they chased. He stated that as he was trying to explain what was happening to the occupants of the apartment, there was a lot of yelling and loud music playing. At some point during this hectic interaction, Sergeant Howard recalled, “They actually admitted to that they were shooting the fireworks off and they understand why this happened. So they were apologetic for it.” (Tr. 49) A decision to issue § 87(2)(b) a summons for possessing the fireworks was later made. (Tr. 50)

Sergeant Howard indicated that minutes later (he estimated between 2-5 minutes), Respondent came into the apartment. He did not see when Respondent entered the premises, but

asserted that he knew he was there because he could hear Respondent behind him stating multiple times in sum and substance: "Don't touch me! Get your hands off me!" (Tr. 56) Sergeant Howard stated that he was "not surprised" that Respondent entered the apartment when he did "because two of his officers were in the apartment with multiple people inside, outnumbered. So that would be proper; anybody would do that." (Tr. 38)

Sergeant Howard was asked to describe the circumstances surrounding § 87(2)(b) apprehension. He described § 87(2)(b) demeanor at that time as "very erratic," "belligerent," "drunk" and "vulgar." Sergeant Howard recalled that § 87(2)(b) refused numerous directives to provide them with his identification for the purpose of issuing a summons. He stated that at one point, § 87(2)(b) even became combative with members of his own family. (Tr. 38) According to Sergeant Howard, at the time that Respondent was speaking with § 87(2)(b) and attempting to issue the summons, it was "complete chaos." "He § 87(2)(b) was cursing. He was being combative, belligerent. He was flailing his body from him." (Tr. 48)

Sergeant Howard acknowledged that he was charged as a co-Respondent in this case. He testified that although he felt he did nothing wrong, he accepted discipline in this case "because I didn't want to drag out the situation. I wanted to get promoted and transferred. And this process takes a long time." (Tr. 54) He further disclosed that after resolving this case he was promoted.

Respondent's testimony:

Respondent testified that in March 2021, he was the Executive Officer of the 73 precinct. On that date and time in question, he and his team responded to a ShotSpotter activation in the vicinity of 219 MacDougal Street. He recalled that Sergeants Howard and Chauvet ran into the building located at § 87(2)(b) immediately upon arrival. Respondent ran after them but because he dropped his Department radio, by the time he picked it up, his partners were no

longer there and he was locked outside the building. He used his radio to call for another unit to the location because he was locked outside by himself and two of his officers were inside the building with “unknown people.” (Tr. 62-63, 89-91)

Respondent estimated that he was locked outside the apartment for about two to three minutes before two individuals exited the building, let him inside. The building is a walk-up building and Respondent did not know which apartment the sergeants had gone into. He initially went to the wrong floor and it was not until he heard Sergeant Chauvet and Sergeant Howard’s voices inside of an apartment on the § 87(2)(b) floor that he knew where to go. (Tr. 66, 68, 91-93)

As Respondent approached the apartment, he saw § 87(2)(b) standing in the doorway speaking with other officers who just arrived on scene. The door of the apartment was slightly open so Respondent could hear screaming and commotion inside. Respondent asked § 87(2)(b) if he could go inside her apartment, but she repeatedly refused to let him in and blocked the door with her body. According to Respondent, he was attempting to explain to § 87(2)(b) why he needed to gain entry (to make sure that his officers were safe) but despite his pleas, she refused to let him inside. Respondent admitted that he had to push § 87(2)(b) out of the way to get inside the apartment. (Tr. 68-70, 93-96)

Once inside the apartment, Respondent testified that based upon his observation, Sergeant Chauvet and Sergeant Howard were outnumbered. Respondent described the scene inside the apartment as a “very fast-paced, chaotic scene.” (Tr. 98, 106) He recalled seeing § 87(2)(b) who appeared to be intoxicated, animatedly interacting with Sergeant Chauvet while a male relative was trying to calm him down. Sergeant Chauvet asked § 87(2)(b) numerous times for his identification, but he did not comply. As this was happening, Respondent stated that § 87(2)(b) was

holding her phone's camera within a foot of Respondent's face and in his "zone of safety." (Tr. 74-78) Respondent stated that from a tactical standpoint this presents a problem.

As a police officer you don't want anybody within arm's length because we -- we do have a firearm, they can disarm us. It's a dangerous situation. Someone could hit me or any officer so at least they need to be at least arm's length to be considered -- you're in my zone of safety, basically. (Tr. 78)

After conferring with Sergeant Chauvet, a decision was made to issue § 87(2)(b) a summons for the fireworks that were inside the apartment. According to Respondent, § 87(2)(b) dropped his body to the floor by the doorway of his own volition when he was informed that he was being taken to the precinct. Respondent and other officers tried to lift § 87(2)(b) up off the floor, but his family members intervened by pulling him back inside of the apartment. Respondent testified that his intention was to take § 87(2)(b) who was being wholly uncooperative, to the precinct where they could issue him a summons and remove him from the chaotic scene. He further asserted that neither he nor any other officer used body strikes, kicks or anything else to gain § 87(2)(b) compliance. Respondent stated that they merely grabbed § 87(2)(b) by the arm and pulled him up from the floor to get him outside of the apartment. (Tr. 78-80) Respondent reiterated that they used "minimum amount of force [we] can just to stabilize the situation." (Tr. 81)

Video and Hearsay Evidence:

There were three videos received in evidence at the hearing: Respondent's BWC footage (CCRB Ex. 1), Sergeant Chauvet's BWC footage (CCRB Ex. 2) and § 87(2)(b) phone camera video (Resp. Ex. A). The footage depicted in each video, although taken from different angles, largely corroborates the testimony of both Sergeant Howard and Respondent. CCRB's Exhibit 1 at 00:47-00:55 captures § 87(2)(b) blocking the doorway of her apartment and Respondent subsequently grabbing her arm and pushing her aside to gain entry. The same video, at 08:53, shows the moment when the officers inform § 87(2)(b) that he will be receiving a summons and ask him to stand

up off the floor. § 87(2)(b) family then intervenes in his apprehension by pulling him back inside of the apartment and Respondent and other officers grab § 87(2)(b) off the floor and out of the apartment. (*Id.* at 09:21-09:26) Respondent's Exhibit A captures similar footage, but from a different angle.

The court also reviewed CCRB's Exhibit 4 and 4A (§ 87(2)(b) CCRB interview and transcript). § 87(2)(b) version of events is generally consistent with the videos received in evidence, as well as much of Respondent and Sergeant Howard's testimony. There is therefore no dispute as to the actions taken by Respondent on the night in question. The only issue is whether his actions constitute sanctionable misconduct.

Specification 1: Use of Force With Respect to § 87(2)(b)

There is no question that Respondent pushed § 87(2)(b) aside to gain entry into her home. The question for this Tribunal is whether the push was reasonable under the circumstances. In determining whether the use of force was reasonable, the trier of fact must allow for police officers' frequent need to make "split-second" judgments about how much force is necessary "in circumstances that are tense, uncertain, and rapidly evolving." *Graham v. Connor*, 490 U.S. 386, 396-97 (1989). The test of reasonableness requires careful attention to the facts and circumstances of each particular case, including the severity of the crime at issue, whether the suspect poses an immediate threat to the safety of the officers or others, and whether he is actively resisting arrest or attempting to evade arrest by flight. *Koeiman v. City of N.Y.*, 36 A.D.3d 451 (1st Dept. 2007), *citing Graham*, 490 U.S. at 396.

Patrol Guide 221-01 states "force may be used when it is reasonable to ensure the safety of the MOS or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape. Any application/use of force must be reasonable under the

circumstances.” The Patrol Guide lists a number of factors to aid in determining reasonableness including but not limited to, “the nature and severity of the crime/circumstances; the immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders and the number of subjects in comparison to the number of MOS.”

In this case, Respondent credibly testified that he was concerned for the safety of Sergeant Chauvet and Sergeant Howard who were inside § 87(2)(b) apartment with a person who could be armed. Respondent could hear yelling inside the apartment and knew that the officers were outnumbered. As the highest-ranking member of service on scene, Respondent had a responsibility to quell any threat with which his subordinates may be confronted. The immediacy of the threat justified Respondent’s use of minimal force (i.e. pushing § 87(2)(b) aside) to enter the apartment in the absence § 87(2)(b) consent. Further, this Tribunal opines that a reasonable officer placed in Respondent’s position of having to gain entry into a location to assist fellow officers may have done the same.

I therefore find Respondent Not Guilty of Specification 1.

Specification 2: Entry Without Sufficient Legal Authority

There is no dispute that Respondent entered § 87(2)(b) apartment without a warrant and without her consent. The issue is whether exigent circumstances justified Respondent’s warrantless entry into her home. Although Respondent may have entered the apartment without consent, I find that under these unique facts, his actions were reasonable and in good faith, given the exigency of the situation.

“[T]he Fourth Amendment has drawn a firm line at the entrance to the house. Absent exigent circumstances, that threshold may not be reasonably crossed without a warrant.” *People v. Garvin*, 30 N.Y.3d 174, 180 (2017), quoting *Payton v. New York*, 445 U.S. 573, 590 (1980).

The test for determining such circumstances is an objective one that turns on the totality of the circumstances confronting the police at the time. *U.S. v. MacDonald*, 916 F.2d 766, 769 (2d Cir. 1990). The essential question in determining whether exigent circumstances justified a warrantless entry is whether law enforcement agents were confronted by an “urgent need” to render aid or take action.” *Id.*, quoting *U.S. v. Martinez-Gonzalez*, 686 F.2d 93 (2d Cir. 1982). In *People v. Mitchell*, 39 N.Y.2d 173, 177-78 (1976), the New York Court of Appeals established a three-prong test to determine whether this exception applies. The elements of this exception are: 1) the police had reasonable grounds to believe that there was an emergency and an immediate need for their assistance for the protection of life or property; 2) the entry or search was not primarily motivated by an intent to arrest and seize evidence; and 3) the police had a reasonable basis, approximating probable cause, to associate the emergency with the area or place to be entered or searched.

Respondent, who was responding to a ShotSpotter alert, observed his officers pursue two men at the location of the alert and then lost sight of them when they ran into a multi-unit apartment building ahead of him. He was unable to gain access to the building for two to three minutes and had no information about what was going on inside. Shortly after entering the multi-unit building, he could hear Sergeant Chauvet and Sergeant Howard’s voices, along with others yelling, coming from an apartment of the § 87(2)(b) floor. Once at the door of the apartment, Respondent attempted to gain consensual entry into the apartment from § 87(2)(b) but she refused. Respondent, who was the Executive Officer of the 73 precinct at the time of this incident, had an objectively reasonable basis to believe that his subordinates could have been at imminent risk of being harmed. He had reason to believe that the two males chased by his partners were inside the apartment with the officers and could be armed, and he could hear that the officers were

outnumbered based upon the shouting coming from inside. Respondent was confronted with a situation that required immediate action to avoid potentially serious consequences.

I therefore find that Respondent's warrantless entry into the apartment was justified under the exigent circumstances exception. CCRB has not established evidence of a bad faith motive or ignorance of available facts, which would be considered negligent; such a warrantless entry would therefore not constitute actionable misconduct. Accordingly, Respondent is found Not Guilty of Specification 2.

Specification 3: Use of Force as Against § 87(2)(b)

Although § 87(2)(b) did not testify at the hearing, after carefully reviewing the video evidence offered by the parties and considering the testimony of Respondent and Sergeant Howard, I find that CCRB has failed to meet its burden of proof by a preponderance of the credible, relevant evidence that Respondent used unlawful force against him.

The video evidence presented at the hearing depicts § 87(2)(b) behaving in a manner consistent with being intoxicated as described by Respondent and Sergeant Howard. § 87(2)(b) was being belligerent and not cooperating with the officers' numerous verbal directions to provide his identification. Given the chaotic nature of the scene inside the apartment, and § 87(2)(b) inebriated condition, it was a prudent decision to transport him to the precinct to issue a summons.

Although the video evidence does not depict exactly how § 87(2)(b) got to the floor, the officers can be heard telling § 87(2)(b) to stand up because he is going to get a summons. (CCRB Ex. 1 at 08:55) § 87(2)(b) family members attempted to pull him back into the apartment and away from the doorway. Respondent then grabbed § 87(2)(b) arm in order to prevent him from going back into the apartment. § 87(2)(b) resisted and a struggle ensued between him and other officers.

Considering the circumstances, Respondent was permitted to utilize the minimal level of physical force necessary in order to eject § 87(2)(b) from the doorway. Importantly, we can see in CCRB's Exhibit 1, at 09:26, that Respondent grabbed his arm in an attempt to prevent him from being pulled back into the apartment. Thus, it appears that Respondent was properly utilizing minimal force in order to gain compliance from § 87(2)(b). CCRB did not prove, by a preponderance of the credible evidence, that Respondent was acting wrongfully when he grabbed § 87(2)(b) arm and pulled him out of the doorway.

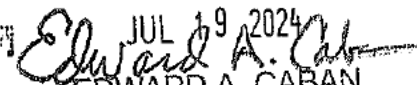
I find Respondent's minimal use of force justified under the circumstances and therefore, he is Not Guilty of Specification 3.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

JUL 19 2024

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 24, 2024

Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Deputy Inspector Omar Birchwood
DADS #: 2022-27455

Dear Commissioner Caban:

The above-referenced disciplinary matter was tried on May 14, 2024, by Administrative Prosecutor, Nicole Jardim, Esq., for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Vanessa Facio-Lince, dated June 13, 2024. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Deputy Inspector Omar Birchwood, was charged with the following:

1. Deputy Inspector (then Captain) Omar Birchwood, on or about March 21, 2021, at approximately 0155, while assigned to 073 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that he grabbed § 87(2)(b) arm and pushed her into § 87(2)(b) located at § 87(2)(b) in Brooklyn, without police necessity.

PG 221-02, PAGE 2, Prohibition 11 USE OF FORCE

2. Deputy Inspector (then Captain) Omar Birchwood, on or about March 21, 2021, at approximately 0155, while assigned to 073 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) § 87(2)(b) in Brooklyn without sufficient legal authority.

PG 203-10, PAGE 1, PARA 5 PUBLIC CONTACT – PROHIBITED CONDUCT [NOW ENCOMPASSED BY NYPD AG 304-06 PAGE 1 PARA 1 PROHIBITED CONDUCT]

3. Deputy Inspector (then Captain) Omar Birchwood, on or about March 21, 2021, at approximately 0155, while assigned to 073 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that he pulled § 87(2)(b) out of § 87(2)(b) located at § 87(2)(b) in Brooklyn, without police necessity.

PG 221-02, PAGE 2, Prohibition 11 USE OF FORCE

The Court found Respondent Birchwood Not Guilty of Specifications One (1), Two (2) and Three (3). It is respectfully requested that you reject ADCT Facio-Lince’s finding on Specifications One (1), Two (2) and Three (3), find Respondent Birchwood Guilty of Specifications One (1), Two (2) and Three (3), and that you accept CCRB’s recommended penalty. As to Specification One (1), a forfeiture of ten (10) vacation days. As to Specification Two (2) a forfeiture of ten (10) vacation days and a forfeiture of ten (10) vacation days for Specification Three (3). The CCRB recommended a penalty of a total forfeiture of ten (10) vacation days to satisfy all three (3) Specifications.

STATEMENTS OF FACTS

CCRB adopts the statements of facts articulated in ADCT Facio-Lince’s Draft Decision

RESPONDENT BIRCHWOOD IS GUILTY OF SPECIFICATIONS ONE AND TWO

CCRB disagrees with the Court’s finding that DI Birchwood was not guilty of Specification One (1) and the Court’s conclusion that the force used by DI Birchwood was reasonable because of the “immediacy of the threat.” (Draft Decision 10). CCRB also disagrees with the Court’s finding that DI Birchwood was not guilty of Specification Two (2) and the Court’s conclusion that the “warrantless entry into the apartment was justified under the exigent circumstances exception.” (Draft Decision 10). The evidence submitted to the Court clearly showed that there was no emergency at hand when DI Birchwood entered and approached § 87(2)(b) and thus the push of § 87(2)(b) and the warrantless entry into the apartment were unreasonable and unjustifiable.

DI Birchwood testified that on March 21, 2021, he and his team responded to a ShotSpotter Activation in the vicinity of 219 MacDougal Street. (Tr. 62). He testified that when he arrived, his team, SGT Chauvet and SGT Howard, ran into § 87(2)(b) and he ran after them. Upon running after them, the front door of the building closed behind them, and he was locked out of the building for approximately two to three minutes. After waiting outside, unknown civilians walked out of the building allowing him to gain entry. (Tr. 66, 68) Once inside, DI Birchwood testified that he walked up the stairs and went directly to the third floor, the wrong floor. After realizing that he was on the wrong floor, DI Birchwood went back down the stairs to the § 87(2)(b) floor where he encountered other officers outside of § 87(2)(b) and § 87(2)(b) standing in the doorway of her home. DI Birchwood admitted during his testimony that he pushed § 87(2)(b) out of the way to get inside the apartment because she refused to let him in. He testified that he had to enter the apartment to make sure that his officers were safe. (Tr. 91-93). DI Birchwood attributed his safety concerns to the ShotSpotter notification he received. However, DI Birchwood’s testimony regarding his concerns for the safety of his

officers is not entirely supported by the evidence or even some of his statements on cross examination. CCRB Exhibits 3, 6 and 6a show that there was both a ShotSpotter notification and other notifications regarding fireworks that came in at the same time for the same location, § 87(2)(b). The evidence also shows that all the notifications, including an indication that they were all related, was conveyed to the officers by dispatch over the radio. (CCRB Ex.3). During his testimony, DI Birchwood admitted that ShotSpotter notifications can often pick up sounds other than gun shots. (Tr. 85). He also admitted that prior to arriving on the scene, he was aware that there were notifications for fireworks at the same location. When asked on cross examination whether he knew the two notifications were related prior to arriving on the scene, DI Birchwood admitted that he did. He stated that he became aware that the two were related prior to even arriving on MacDougal Street. (Tr. 85-86). Lastly, DI Birchwood testified that when he arrived in front of § 87(2)(b) he did not see any weapons, shell casings or any signs of violent activity that would cause him to believe that there was an emergency at hand. (Tr. 88). The totality of the circumstances and the evidence shows that when DI Birchwood approached § 87(2)(b) he already knew that he was responding to an incident regarding fireworks and not shots fired. The fact that DI Birchwood already had this information prior to his actions negates his statements that he was responding to an emergency and that exigent circumstances existed.

In analyzing the totality of the circumstances here, it is also important to analyze DI Birchwood's actions before and during his interaction with § 87(2)(b) as well as before unlawfully entering the apartment. In evaluating the evidence, DI Birchwood's actions do not reflect that of someone who is responding to an emergency. As discussed above, DI Birchwood is locked out of the building for a few minutes before he was able to gain entry into the apartment. Once he was finally let in, CCRB Exhibit 1, shows that DI Birchwood's actions again do not reflect that he believes an emergency is at hand. The footage shows that he does not run into the building with his gun drawn or even running. Instead, he calmly walks into the building and up the stairs to the third floor. (CCRB Ex. 1). As he walks up to the wrong floor, the video depicts DI Birchwood going right past Apt 2B, without hesitation. This clearly shows that at that moment, DI Birchwood had no indication that any emergency was at hand inside of § 87(2)(b) because he could not even hear it. Had there been commotion or any type of emergency happening at that moment, surely, DI Birchwood would have been able to hear it and would have stopped on the correct floor.

In addition, the footage also shows that when DI Birchwood goes back down to the § 87(2)(b) floor, there are already three to four officers standing outside of the apartment. BWC footage shows that there are 3-4 other officers standing outside of the apartment. (CCRB Ex. 1). The video shows the officers speaking to § 87(2)(b) as she stands in her doorway with the door open behind her. The BWC footage shows that the officers who were outside of the apartment were calmly speaking to § 87(2)(b). The video footage does not show any of the officers trying to barge into the apartment or behaving in any manner that would indicate that they feared for their safety. During his testimony, DI Birchwood testified that when he approached § 87(2)(b) in the doorway, he could hear the voices of his sergeants inside. (Tr. 94). When asked on cross examination as to whether he could see inside the apartment through the open door, DI Birchwood admitted that he could somewhat see over § 87(2)(b) head and into the apartment. (Tr. 95). He also testified that while he could hear their voices, he could not hear what they were saying, nor did he hear any of them yell out or say anything about a gun. (Tr. 94-95). The evidence clearly shows that there was no reason for DI Birchwood to unlawfully enter § 87(2)(b) apartment. From where he was standing DI Birchwood could hear and see what was

happening inside and could have easily ordered his sergeants to step out so that he could assess the situation and their safety. Given these facts, DI Birchwood had no reason to forcefully push § 87(2)(b) out of his way.

Lastly, DI Birchwood's actions once inside the apartment, further prove that he knew he was reporting to a fireworks situation and not shots fired. DI Birchwood testified that once inside the apartment he did not search the living room area, nor did he search the civilians inside. (Tr. 98). On cross examination when asked if he conducted any protective searches, DI Birchwood stated, "why would I do that". (Tr. 98 lines 15-17). DI Birchwood's response of "why would I do that" further solidifies that DI Birchwood's knowledge that there was no emergency at hand and that there were no legitimate safety concerns. If DI Birchwood truly believed that he was responding to a shots fired incident and truly believed that his sergeants were at risk, he would have entered and immediately conducted a protective search to ensure the safety of his officers. The evidence and DI Birchwood's actions make clear that he did not conduct this search because he already knew this incident was about fireworks and not shots fired, and thus exigent circumstances could not have applied to this situation.

The objective, credible evidence in this case clearly shows that exigent circumstances did not exist in this situation and thus it was unreasonable for DI Birchwood to push § 87(2)(b) out of the way to unlawfully enter her apartment without a warrant and without her consent. DI Birchwood should be found guilty of Specifications One (1) and (2) and CCRB's recommended penalty of a forfeiture of ten (10) vacation days for each Specification, should be imposed.

RESPONDENT BIRCHWOOD IS GUILTY OF SPECIFICATION THREE

CCRB disagrees with the Court's finding that DI Birchwood was not guilty of Specification Three (3) and the Court's conclusion that the respondent was "properly utilizing minimal force." (Draft Decision 13). The evidence submitted shows that DI Birchwood wrongfully used force when he pulled § 87(2)(b) out of the apartment.

DI Birchwood and SGT Howard testified that § 87(2)(b) was being arrested because he failed to provide them with his identification when they were trying to issue him a summons for fireworks, a non-violent offense. (Tr. 100). The NYPD documents in evidence and the witnesses' testimony on cross examination show that § 87(2)(b) was instead arrested and issued a summons for the violation of disorderly conduct. (CCRB Ex. 5). Prior to the officers arresting § 87(2)(b) he was not being violent towards the officers. On cross examination, DI Birchwood admitted that while they were trying to arrest § 87(2)(b) he was not flailing his body, nor was he trying to strike or kick any of the officers to prevent them from arresting him. (Tr. 101-102). The nature and severity of what § 87(2)(b) was being arrested for did not warrant him being pulled out of the apartment and being brought to the ground in the manner shown on BWC footage. (CCRB Exs. 1 and 2). Lastly, as shown in the BWC footage in evidence, § 87(2)(b) was outnumbered by the officers and did not behave in any manner that posed a risk to the safety of DI Birchwood or any of his officers. Thus, the force used was unreasonable.

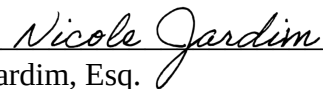
The objective, credible evidence in this case clearly shows that DI Birchwood wrongfully used force when he pulled § 87(2)(b) out of the apartment. DI Birchwood should be found

guilty of Specification Three (3) and CCRB's recommended penalty of a forfeiture of ten (10) vacation days, should be imposed.

CONCLUSION

The Court found Respondent Birchwood Not Guilty of Specifications One (1), Two (2) and Three (3). It is respectfully requested that you reject ADCT Facio-Lince's finding on Specifications One (1), Two (2) and Three (3), find Respondent Birchwood Guilty of Specifications One (1), Two (2) and Three (3), and that you accept CCRB's recommended penalty. As to Specification One (1), a forfeiture of ten (10) vacation days. As to Specification Two (2) a forfeiture of ten (10) vacation days and a forfeiture of ten (10) vacation days for Specification Three (3). The CCRB recommended a penalty of a total forfeiture of ten (10) vacation days to satisfy all three (3) Specifications.

Respectfully submitted,



Nicole Jardim, Esq.
Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board

Cc: Louis C. La Pietra, Esq.